

25STCV10146 25STCV10146

County: los-angeles

Division: Civil Law and Motion

Department: 732

Hearing date: 2026-09-16

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Case Number: 25STCV10146 Hearing Date: September 16, 2026 Dept: 732

Erin O. Guthrie v. 660 Spring Street Owner, LLC, et al.

Wednesday, September 16, 2026

CASE NUMBER: 25STCV10146

OPPOSED

Plaintiff Erin O. Guthrie's Motion to Compel

Responses to Form Interrogatories, Special Interrogatories, and Requests for Production from Defendant 650 Spring Owner, LLC

Facts:

This is an action for assault, negligence, and premises liability. Plaintiff Erin O. Guthrie ("Plaintiff") resided in residential property owned and controlled by Defendants 660 S Spring Owner LLC, SBDTLA 1, LLC, SBDTLA 2, LLC, SBDTLA 3, LLC, SBDTLA 4, LLC, FPI Management, Inc., and Avenue 5 Residential Inc. ("Property Defendants"). (Complaint ¶ 21.) Plaintiff was injured in an unprovoked attack by another tenant of the property, Defendant Ron Billups ("Billups"), who thereafter continued to intimidate and assault her in the building's common areas and near her unit. (Complaint ¶¶ 26–29.) The security guard employed by Property Defendants and Defendant Newton Patrol, Inc. ("NPI") was present during the attack and did not attempt to deescalate, but rather recorded the attack on his phone. (Complaint ¶ 26.) Property Defendants had advance knowledge of the

necessity of security on the premises as well as the unfitness of Defendant NPI for the task. (Complaint ¶¶ 60–61.)

Procedural History: Plaintiff

filed the Complaint on April 4, 2026, alleging six causes of action:

1.

Assault

2.

Battery

3.

Intentional Infliction of Emotional Distress

4.

Negligent Hiring, Supervision, Training, Retention

5.

Negligence

6.

Premises Liability

On June 10, 2026, this court overruled the demurrer of Defendants SBDTLA 1, LLC, SBDTLA 2, LLC, SBDTLA 3, LLC and SBDTLA 4, LLC.

Plaintiff filed the present motion to compel responses from Defendant 650 Spring Owner on May 27, 2026.

Defendant 650 Spring Owners filed an opposition on September 1, 2026.

Analysis

I.

MOTIONS TO COMPEL

A propounding party may demand a responding

party to produce documents that are in their possession, custody or control. (Code Civ. Proc., § 2031.010.) A party may likewise conduct discovery by propounding interrogatories to another party to be answered under oath. (Code Civ. Proc. § 2030.010, subd. (a).) The responding party must respond to the production demand either by complying, by representing that the party lacks the ability to comply, or by objecting to the demand. (Code Civ. Proc., § 2031.210.) The responding party must respond to the interrogatories by answering or objecting. (Code Civ. Proc. § 2030.210, subd. (a).) If the responding party fails to serve timely responses, the propounding party may move for an order compelling responses to the production demand and interrogatories. (Code Civ. Proc., §§ 2030.290, 2031.300.)

Plaintiff Erin O. Guthrie ("Plaintiff") moves to compel responses to form and special interrogatories and requests for production from Defendant 650 Spring Owner, LLC ("Defendant"). The discovery was served on August 26, 2025. (Chung Decl. ¶ 3.) No responses were timely served. In subsequent meet-and-confer exchanges, Defendant's counsel indicated that responses had been served by email on November 24, 2025, but (1) Plaintiff's counsel did not receive these responses on the date indicated; (2) the proof of service provided by Defendant for these responses listed defective email addresses, (3) the responses contained objections that had been waived even by the date of ostensible service, and (4) the responses belatedly given to Plaintiff are not verified. (Chung Decl. ¶¶ 5–8.)

Defendant in opposition essentially confirms the above narrative of facts, but claims only that verifications of the discovery at issue are forthcoming. (Opposition at p. 9.) It does not explain why verification were not served in the period between the filing of the motion on May 27, 2026 and the filing of its opposition on September 1, 2026. But in any event, the responses contain objections which have long been waived under Code of Civil Procedure § 2030.290, subd. (a) and 2031.300, subd. (a). Defendant does not contend that the waiver has not occurred, but states only that it reserves the right to bring a motion for relief from waiver, which motion has yet to be filed. (Opposition at pp. 8–9.) Defendant's reservations of rights and assurance of future performance provide no basis to deny the motion.

The motion is GRANTED. Responses without objections shall be served within 20 days of this order.

II. SANCTIONS

The

prevailing party on a motion to compel is generally entitled to monetary sanctions, unless the court “finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc. §§ 2030.290, 2031.300.) Sanctions are also mandatory against a party whose failure to serve responses to requests for admission makes the motion necessary. (Code Civ. Proc. § 2033.280, subd. (c).)

Plaintiff

seeks \$1,560.00 in sanctions, representing two hours of attorney work at \$750 per hour, plus a \$60 filing fee. (Chung Decl. ¶ 10.)

Sanctions

are awarded against Defendant and its counsel in the amount of \$1,560.00, to be paid within 20 days of this order.

Superior Court of California

County of Los Angeles

Department 732

ERIN

O. GUTHRIE.,

Plaintiffs

v.

650 S. SPRING OWNER LLC et al.,

Defendants.

Case No.:

25STCV10146

Hearing Date: September 16, 2026

[TENTATIVE] RULING RE:

Plaintiff

Erin O. Guthrie's Motion to Compel Responses to Form Interrogatories, Special Interrogatories, and Requests for Production from Defendant 650 Spring Owner, LLC

Plaintiff Erin O. Guthrie's Motion to Compel

Responses to Form Interrogatories, Special Interrogatories, and Requests for Production from Defendant 650 Spring Owner, LLC is GRANTED. Responses without objections shall be served within 20 days of this order. Sanctions are awarded against Defendant and its counsel in the amount of \$1,560.00, to be paid within 20 days of this order.

Plaintiff to give notice.

Dated: September 16, 2026

Hon.

Richard S. Kemalyan

Judge

of the Superior Court